

Portfolio Recovery Associates, LLC v. Jeffrey Schwabenland, 25LC-1554

Hearing: Motion to Compel Arbitration

Date: July 1, 2026

Portfolio Recovery Associates, LLC, filed this breach of contract action seeking \$5,105.37 against Jeffery J. Schwabenland on December 24, 2025. Defendant filed an answer on February 11, 2026. Defendant concurrently filed a motion to compel arbitration, which is now on calendar.

No opposition is on file. However, proof of service was attached to the motion and shows service one day prior to filing, meaning that the notice of motion was served without the hearing information which is added by the Clerk's Office at the time of filing. (Cal. Rules of Court, rule 3.1110(b); Local Rule 7.05.1.)

Defendant filed a "notice of court hearing" on April 8, 2026; however, the proof of service attached to that notice is the same as the one attached to the original motion, showing service on February 10, 2026. Defendant failed to provide proof that notice of the hearing date was ever served on Plaintiff.

The motion shall be continued for proof of service on Plaintiff. The continued hearing date shall be October 7, 2026, at 9:00 a.m. in Department 4.

Defendant shall serve notice of the continued hearing date along with a copy of the motion and supporting papers no later than September 2, 2026, and shall file proof of service by September 23, 2026.